

Defendant Scottsdale argues that a continuance would prejudice Scottsdale who has been diligently litigating this case, that interests of justice would best be served by letting trial proceed as scheduled, no other factor is relevant to the fair determination of the motion, and Plaintiffs failed to provide an adequate showing of good cause to continue the trial. (Opposition at p. 4: 6-10.)

Trial Continuance Duration

The Court agrees with Defendant Scottsdale that a trial continuance of 946 (over two and a half years), is unreasonable. However, Plaintiffs did not propose any new dates for a new trial date in their papers.

The Court orders the parties to appear to discuss new trial dates at the hearing.

Conclusion

For the reasons analyzed above, Plaintiffs' Motion to Continue Trial and Toll the Five-Year Rule are granted. Parties are ordered to appear to discuss a new trial date. The Parties are ordered to appear via Zoom for a Trial Setting Conference. The Trial calendared for August 17, 2026 is **vacated**. The Issue conference scheduled for July 17, 2026 at 8:30 a.m. is **vacated**. The Parties are ordered to notify the settlement mentor.

17. 9:00 AM CASE NUMBER: N26-0360
CASE NAME: CLAIM OF:ASSER ABDELMATIASSER ABDELMATI
HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Ahmed Abdelmatti's ("Petitioner") Petition for Approval of Compromise of Minor Asser Abdelmatti (DOB 6/5/2011) ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on July 15, 2026, provided Petitioner complies with the Court's order below.

Background

On February 27, 2026 Petitioner, parent and guardian ad litem for her child, Minor filed the Petition to compromise the claim that Minor had against Kristin Howes (insured) related to an accident that occurred on September 30, 2024 in Brentwood, California in Contra Costa County. In that accident, Minor sustained injuries his right leg when insured struck him while he was on a scooter. Petitioner represents that Minor has received treatment at urgent care. He has fully recovered and there are no permanent injuries.

The Defendant's insured offered settlement in the amount of \$10,000, of which \$9,750.14 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$249.86 represents a negotiated deduction from the settlement, which is used to satisfy the liens for medical expenses. Petitioner represents herself in propria persona and no attorneys have been incurred. The Court notes that the carrier's attorney has assisted Petitioner in preparing the Petition and accompanying papers. Petitioner prepared a proposed order to deposit funds into a blocked account

for the benefit of Minor.

Analyses

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**. The Court will execute the (a) Proposed Order Approving Compromise of Minor's Claim and the (b) Proposed Order to Deposit Funds into a Blocked Account lodged on February 27, 2026.
2. The Court orders Petitioner to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited in a blocked account.